

P. White

Date: Nov 2, 2015

RECORDING REQUESTED BY AND)
WHEN RECORDED RETURN TO:)
City of Cheyenne)
)
)
)

Proposed
Substitute

(space above this line reserved for recorder's use)

EASEMENT AGREEMENT

THIS EASEMENT AGREEMENT (the "Agreement") is made this ____ day of _____, 2015, by and between Robert E. Green, Sr., Trustee of the Robert E. Green, Sr., Living Trust, dated August 11, 2015, whose address is 279 Rd. 102, Granite Canon, WY 82059, (the "Grantor"), and the City of Cheyenne, a municipal corporation organized under the laws of the State of Wyoming, whose address is 2101 O'Neil Avenue, Cheyenne, WY 82001 (the "Grantee").

I. RECITALS

A. The Grantor is the owner in fee simple of certain real property located in Laramie County, Wyoming, more particularly described on Exhibit A attached hereto and by reference incorporated herein (the "Grantor's Property").

B. The Grantor's Property is encumbered by a Deed of Conservation Easement held by The Nature Conservancy (the "Conservancy") recorded February 27, 2015 at Reception #655698, Book 2431, Page 648 in the Public Records in Laramie County, Wyoming (the "Conservation Easement").

C. Grantee proposes to develop and maintain a public trails system and open space area called the Belvoir Ranch and Red Mountain (Big Hole) Open Space (the "Open Space Program") over property which is adjacent to and in the vicinity of Grantor's Property.

D. Grantor desires to grant to Grantee a trail easement (The Robert E. Green Trail) over and across Grantor's Property to be used in conjunction with the Open Space Program for the limited purposes and terms as described herein.

II. AGREEMENT

NOW, THEREFORE, for Ten and no/100 Dollars (\$10.00) and other valuable consideration, the receipt and sufficiency of which is hereby acknowledged, the parties hereto agree as follows:

1. Conveyance of Public Trail Easement. Grantor hereby grants to Grantee a non-exclusive easement (the "Easement") for non-motorized hiking and biking uses, as is more particularly depicted on Exhibit B attached hereto and incorporated herein by this reference, subject to the terms, conditions and limitations set forth herein. The Easement will consist of a corridor one hundred feet (100') in width and shall run from point to point as identified in Exhibit B. The trail corridor will be further identified by GIS coordinates of the point at which an access gate will be installed near a parking lot located on the Grantor's property and the points at which the trail corridor will intersect the boundary between the Grantor's and Grantee's properties. It is mutually understood and agreed that prior to construction, the alignment of the initial trail corridor may be altered if necessary to accommodate areas that are sensitive due to archeological, endangered species, and other findings that may affect the conservation values of the Conservation Easement. After the trail is constructed, the Easement will be fifty feet (50') in width centered on the centerline of the constructed trail. All ingress and egress points to the trail easement will be controlled by "V" gates to prevent motorized vehicular access to the trail easement.

2. Conservation Easement. The parties acknowledge and agree that the Easement is subordinate and subject to the terms and conditions of the Conservation Easement. To the extent there exists a conflict in terms or conditions between the Conservation Easement and this Easement, the Conservation Easement shall control.

3. Limitations on Grant and Conveyances. In granting the Easement, Grantor expressly represents that Grantor does not:

- A. Extend any assurance that the Easement is safe for any purpose;
- B. Confer upon any member of the public the legal status of an invitee or licensee to whom a duty or care is owed by Grantor; or
- C. Assume responsibility or incur any liability for injury to person or property or for the death of any person caused by the use of the Easement.

4. Management of the Easement.

- A. Except as necessary to construct the Robert E. Green Trail, Grantee shall oversee and manage the Easement so as to promote, protect and preserve the Easement in its present natural, essentially undisturbed state, and the Grantor's use and enjoyment of the Grantor's Property. Such oversight and management shall be consistent with the concepts and general principles contained in this Agreement.

- B. Grantor shall have no responsibility for maintaining, inspecting, policing or generally managing the Easement. Grantee or its designee shall be responsible for monitoring and overseeing the use of the Easement, and enforcing the terms of the Easement, pursuant to the terms set forth herein. It is mutually understood and agreed that the Grantor, the Grantee, the Nature Conservancy, and Larimer County, Colorado, will enter into a management agreement for the future maintenance of the Easement before the trail is opened for public access.
- C. Grantor shall have no obligation to insure or indemnify Grantee for any injury, claim or damage to any person or property while using the Easement, unless caused exclusively by Grantor. Nothing herein is intended to waive any limits on liability afforded to the parties pursuant to Wyo. Stat. Sections 34-19-101 through 34-19-107 (the "Wyoming Landowner Protection Statutes"). Nothing herein is intended to waive any limits on liability afforded to the parties pursuant to the Recreation Safety Act, W.S. § 1-1-121, *et seq.*
- D. Except for enforcement of the terms of this Easement between the parties hereto, the Grantee reserves all immunities and defenses available to Grantee as a governmental entity under the Wyoming Governmental Claims Act, W.S. § 1-39-101, *et seq.*, and other applicable laws of the State of Wyoming.

5. Use Restrictions.

- A. The Easement may be used by the Grantee and members of the public subject to the terms of this Easement and the Conservation Easement. For purposes of this Easement, members of the public are defined as persons who have been granted permission to access the Robert E. Green Trail by the City of Cheyenne.
- B. The Easement shall only be used for the limited non-motorized hiking and biking uses as set forth below. No other uses, express or implied, are authorized by this Agreement. Without limiting their generality, the following uses are strictly prohibited within or upon the Easement.
 - i. The operation of motorized vehicles including, but not limited to, cars, trucks, sport utility vehicles, motorcycles, snowmobiles, and all-terrain vehicles.
 - ii. Camping, fishing, hunting, campfires, and the discharge of firearm.
 - iii. All forms of sports or recreational activity, other than non-motorized hiking and biking in or within the Easement are prohibited without the prior written consent of the Grantor, which consent can be withheld for any reason or no reason.

- iv. Littering, the creation of any unsanitary condition, defacing the Grantor's Property, damaging or injuring trail improvements or property within the Easement, impeding access to the Grantor's Property or to adjoining property, removing any survey staking, collecting or removing water, firewood, rocks or artifacts, or any other activity that results in harassment or injury to wildlife or plants, is strictly prohibited. Users of the Easement shall not bring dogs or any other domesticated or non-domesticated animals onto the Easement or the Grantor's property.
 - v. The Easement shall be closed to the general public every year during the period of time from August 15th to February 28th of the following year to coordinate with elk hunting season as prescribed by the Wyoming Game and Fish Department. Grantee shall be responsible for signage alerting the general public to the closure of the Easement.
- C. Neither Grantor nor Grantee shall impose any fees or charges for lawful entry upon or use of the Easement.

6. Compliance. In the event that non-compliance with any restriction contained herein or in the Conservation Easement with respect to the Easement comes to attention of Grantee, Grantee shall notify the Grantor and the Conservancy in writing of such non-compliance and shall work with the Grantor and the Conservancy to correct such non-compliance. Grantee shall consult with the Grantor and the Conservancy and may elect to close or restrict the use of the Easement indefinitely should the Grantee determine, following consultation with the Grantor and the Conservancy, that the Grantor's intent as set forth herein or the Conservation Easement is being violated by the occurrence of verified incidents of trespass, vandalism, adverse environmental impacts, substantial littering, or such other similar incidents. Grantee shall provide prior notice to, and consult with, the Conservancy, before any decision is made by Grantee to restrict or close use of the Easement shall become effective.

7. Miscellaneous.

- A. The Easement may not be transferred or assigned by Grantee without the prior written consent of the Grantor which consent shall not be unreasonably withheld.
- B. All notices or other documents required or authorized to be sent by one party to the other shall be in writing and shall be deemed given to a party when personally delivered, or when deposited in the United States mail, sufficient postage prepaid, return receipt requested, addressed as follows:

If to Grantor:

Robert E. Green, Sr.,
Trustee of the Robert E. Green Sr., Living Trust, dated August 11, 2015
279 Road 102
Granite Canon, WY 82059

If to Grantee:

City of Cheyenne
2101 O'Neil Avenue
Cheyenne, WY 82001

If to the Conservancy:

The Nature Conservancy
258 Main Street
Lander, WY 82520

With a copy to:

The Nature Conservancy
Western Resource Office
2424 Spruce Street, Suite 100
Boulder, CO 80302

Each party shall notify the other party if its address changes from time to time.

- C. Grantee agrees to be bound by all covenants, terms, conditions, restrictions and limitations expressed herein.
- D. The Easement granted herein and all provisions of this Agreement shall run with the land and shall be applicable to, binding upon and inure to the benefit of the parties, their respective transferees, representatives, successors and assigns.
- E. This Agreement contains the entire understanding of the parties. There are no representations, warranties, covenants or undertakings other than those expressly set forth herein.

- F. This Agreement may not be modified or amended except in writing signed by all the parties hereto. The laws of the State of Wyoming shall govern the validity, performance and enforcement of this Agreement. In the event of litigation arising from a dispute under this Agreement, the prevailing party shall be entitled to recover its costs and expenses, including reasonable attorney fees from the non-prevailing party.
- G. A waiver of a breach of any term of this Agreement will not be considered a waiver of a further breach of the same term, a waiver of a breach of any other term, or a waiver of such waiving party's right to declare an immediate or a subsequent default.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the day and year first written above.

GRANTOR:

Robert E. Green, Sr., Trustee of the Robert E. Green, Sr., Living Trust dated August 11, 2015.

STATE OF WYOMING)
) ss.
COUNTY OF LARAMIE)

The foregoing instrument was acknowledged before me this _____ day of _____, 2015, by Robert E. Green, Sr., Trustee of the Robert E. Green, Sr., Living Trust.

Witness my hand and official seal.

(SEAL)

Notary Public
My Commission expires on _____, 20__.

GRANTEE:
City of Cheyenne, Wyoming

Richard L. Kaysen, Mayor

(SEAL)
Attest:

Carol Intlekofer, City Clerk

STATE OF WYOMING)
) ss.
COUNTY OF LARAMIE)

The foregoing instrument was acknowledged before me this _____ day of _____, 2015, by Richard L. Kaysen, Mayor of the City of Cheyenne, Wyoming.

Witness my hand and official seal.

(SEAL)

Notary Public
My Commission expires on _____, 20__.

EXHIBIT A

Property Description

All that certain real estate situated in Laramie County, Wyoming, more particularly described as follows:

All of Sections 11 and 14, Township 12 North, Range 70 West of the 6th P.M., Laramie County, Wyoming, lying Southerly of the Union Pacific Railroad right of way.

Exhibit B

Trail Corridor

Robert E. Green Trail GPS points

Parking gate: 41° 1'10.68"N
105°11'33.13"W
Gate #1: 41° 0'57.06"N
105°11'29.45"W
Gate #2: 41° 0'38.26"N
105°11'29.58"W
Gate #3: 41° 0'17.46"N
105°11'29.30"W

